

Annexure A

CONFIDENTIALITY, DATA AND INTELLECTUAL PROPERTY PROTECTION

1. Confidential Information

“Confidential Information” shall mean any and all Inventions and Know-how, information and material of ZIDIO (including for avoidance of doubt any Confidential Information of its Clients) that comes into the possession or know of the Intern and shall include the following:

- a) Any and all information processing programs, software, properties, items, information, data, material or any nature whatsoever or any parts thereof, additions thereto and materials related thereto, produced or created at any time by ZIDIO or the Intern in the course of or in connection with or arising out of the Intern’s association with ZIDIO. Program/Software shall mean source code and/or machine instructions wherever resident and on whatever media and all related documentation and software,
- b) All other information and material of ZIDIO relating to design, method of construction, manufacture, operation, specifications, use and services of the ZIDIO equipment and components, including, but not limited to, engineering and laboratory notebooks, reports, process data, test data, performance data, inventions, trade secrets, systems, software, object codes, source codes, copyrighted matters, methods, drawings, computations, calculations, computer programs, narrations, flow charts and all documentation therefore and all copies thereof (including for avoidance of doubt any such material belonging to the Clients of ZIDIO).
- c) Corporate strategies and other confidential and proprietary material and information, which could cause competitive harm to ZIDIO if disclosed,
- d) Customer and prospective customer lists, and
- e) All other information and material, which may be created, developed, conceived, gathered or collected or obtained by the Intern in the course of or arising out of the association with ZIDIO or while in or in connection with or for the purposes of his/her association with ZIDIO or any of the operations and entrusted by ZIDIO to the Intern.

2. Intern's Obligations

Intern agrees to treat the Confidential Information as strictly confidential and a trade secret of ZIDIO. Intern agrees not to use, or cause to be used, or disclose or divulge or part with either directly or indirectly any Confidential Information for the benefit of or to any third parties except for or on behalf of or as directed or authorized by ZIDIO or to a person

having a valid contract with ZIDIO. Upon termination of employment, the Intern agrees to surrender to ZIDIO all Confidential Information that he or she may then possess or have under his or her control.

3. Intellectual Property Rights

Intern agrees and confirms that all intellectual property rights in the Confidential Information shall at all times vest in and remain with or belong to ZIDIO and Intern shall have no right title or claim of any nature whatsoever in the Confidential Information. Intern shall promptly disclose to an authorized officer of ZIDIO all inventions, ideas, innovations, discoveries, improvements, suggestions, or reports and enhancements made, created, developed, conceived or devised by him or her arising out of his or her engagement with ZIDIO, including in the course of provision of services to the Clients of ZIDIO and Intern hereby agrees and confirms that all such intellectual property rights shall at all times vest in and remain vested in ZIDIO and agrees to transfer and assign to ZIDIO any interests Intern may have in such intellectual property rights including any interest in and to any domestic or foreign patent rights, trademarks, trade names copyrights and trade secret rights therein and any renewals thereof. On request of ZIDIO, Intern shall execute from time to time, during or after the termination of his or her employment, such further instruments, including without limitations, applications for letters of patent, trademarks, trade names and copyrights or assignments thereof, as may be deemed necessary or desirable by ZIDIO to perfect the title of ZIDIO in the intellectual property rights and to effectuate the provisions hereof. All expenses of filing or prosecuting any application for patents, trademarks, trade names, or copyrights shall be borne solely by ZIDIO, but Intern shall co-ordinate in filing and / or prosecuting any such applications. Intern hereby expressly waives any "artist's rights" or "moral rights", which Intern might otherwise have in such intellectual property rights.

4. Prior knowledge

Intern acknowledges that prior to his or her appointment by ZIDIO, he or she had no knowledge of the Confidential Information of ZIDIO and that such Confidential Information is of a confidential and secret character and is vital to the continued success of ZIDIO's business. Intern further acknowledges that he or she is associated with ZIDIO in a capacity in which he or she will become acquainted with all or part of such Confidential Information. In order to safeguard the legitimate interests of ZIDIO in such Confidential Information, it is necessary for ZIDIO to protect such Confidential Information by holding it secret and confidential.

5. Use of Third-Party material

Intern expressly agrees that he or she shall not in the course of his or her association with ZIDIO and while working on the premises or facilities of ZIDIO or its Clients or in connection with the development of any intellectual property rights or work for or on behalf of ZIDIO;

a) Use any Third-Party material or intellectual property rights except those intellectual property rights provided by ZIDIO or expressly authorised by ZIDIO or without having proper authorisation or license or approval of the respective owner of such intellectual property rights.

b) Participate in any activity for creation (including conception, design, development, testing, implementation, support or marketing) of any Intellectual Property for or on behalf of ZIDIO or its affiliates if he or she has been exposed, directly or indirectly, to any Third Party IP which is in the same subject area (such as research area, technology or application area) as, or which is same or similar to, the Intellectual Property or any portion thereof, to be so created, unless;

i. Intern has expressly declared to ZIDIO in a prescribed form whether such exposure was owing to publicly available information or under and subject to any agreement; AND

ii. ZIDIO has expressly confirmed to the Intern that ZIDIO has proper authorization or license or approval of the respective owner of such Third-Party IP to use the same in Intellectual Property or portion thereof to be created and authorized in writing Intern's participation in such activity.

c) Knowingly access, make reference to or use any Third Party IP (except as permitted under Section 5(a), directly or indirectly, during the period of association with the creation (conception, design, development, testing, implementation, support or marketing) of ZIDIO Intellectual Property or portion thereof, which is in the same subject area of ZIDIO Intellectual Property or which is same or similar to such ZIDIO Intellectual Property or portion thereof being created. In case, Intern access or is exposed to any such Third-Party IP during such association, Intern shall promptly bring it to the notice of ZIDIO IP asset owner or ZIDIO project manager in writing and immediately cease to participate in any such activity.

6. Security policies and Guidelines

6.1 Intern agrees to abide by and be bound by any and all policies, documents, guidelines and processes including IP, Information Security and Confidentiality of ZIDIO in force from time to time whether expressly endorsed or not.

6.2 Intern acknowledge and agree that in the course of, and as a result of his/her engagement with ZIDIO, Intern will have access to, obtain or come across personal

data or information of other ZIDIO Associates or Clients, including without limitation, sensitive personal data or information (collectively "Personal Data and Information") within the meaning of the applicable Indian Law and Rules or any other applicable Law, directive or regulation anywhere in the world. In respect of any such Personal Data and Information accessed, obtained, acquired or processed by Intern for and on behalf of ZIDIO, its affiliates or Clients, Intern undertake that he/she will:

a) Process the Personal Data and Information only on behalf of ZIDIO, its Affiliates or Clients, as the case may be, and only on and in accordance with instructions received from the data controller from time to time;

b) Abide by such technical and organizational measures necessary to prevent the accidental or unlawful destruction or accidental loss, alteration, un-authorized disclosure or access to the Personal Data and Information;

c) Promptly (and in any event within 24 hours of awareness) bring to notice of ZIDIO or its Affiliates, as the case may be, of any actual or suspected incident of unauthorized or accidental disclosure of, or access to, the Personal Data and Information or other breach of this section (a “Security Breach”);

d) Promptly provide ZIDIO with all information in Intern’s notice, possession or control concerning any Security Breach and not make any public announcement regarding a Security Breach without ZIDIO’s prior written consent;

e) Not do, or omit to do, anything, which would cause ZIDIO or any of its employees, officers or agents to be in breach of its obligations under any privacy or data protection policy, regulation or legislation;

f) Upon expiry or termination of Intern’s engagement with ZIDIO, return all copies of the Personal Data and Information to ZIDIO in Intern’s possession or control; and

g) Promptly bring to ZIDIO’s notice of any request received from a data subject to have access to his/her Personal Data and Information or of any other communication relating to the access, use or processing of any Personal Data and Information (including any notice from the regulatory body) and fully co- operate and assist ZIDIO in relation to any such request or communication.

7. Restriction on Intern’s Rights

Intern agrees that he or she shall not make, have made, replicate, reproduce, use, sell, incorporate or otherwise exploit, for his or her own use or for any other purpose, any of the Confidential Information including intellectual properties of ZIDIO that is or may be revealed to him or her by ZIDIO or which may in the course of his or her employment with ZIDIO come into his or her possession or knowledge unless specifically authorized to do so in writing by ZIDIO.

8. No License

ZIDIO and Intern agree that no license under any patent or copyright now existing or hereafter obtained by ZIDIO is granted, agreed to be granted, or implied by the terms of this Agreement, or by the disclosure to Intern of the Confidential Information.

9. Equitable Rights

Intern acknowledges that any Confidential Information that comes into the possession and / or knowledge of Intern is of a unique, highly confidential and proprietary nature. It is further acknowledged by Intern that the disclosure, distribution, dissemination and / or release by Intern of the Confidential Information without the prior written consent of ZIDIO or any breach of the Confidentiality Clause by Intern will cause ZIDIO to suffer severe, immediate and irreparable damage and that upon any such breach or any threat thereof, ZIDIO shall without prejudice to any other remedies available to it, be entitled to appropriate equitable relief including the relief of specific performance and injunctive relief, in addition to whatever remedies it might have at law.